

STATE OF NEW YORK

1067--A

Cal. No. 1225

2025-2026 Regular Sessions

IN SENATE

(Prefiled)

January 8, 2025

Introduced by Sens. SERRANO, ADDABBO -- read twice and ordered printed, and when printed to be committed to the Committee on Cultural Affairs, Tourism, Parks and Recreation -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the parks, recreation and historic preservation law, in relation to establishing the New York state park adopt-a-trail stewardship program; and to amend the state finance law, in relation to establishing the state park adopt-a-trail stewardship program fund

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The parks, recreation and historic preservation law is
2 amended by adding a new section 3.27 to read as follows:

3 § 3.27 State park adopt-a-trail stewardship program. 1. a. The commis-
4 sioner may enter into stewardship agreements with any person or persons
5 for the purposes of preserving, maintaining, or enhancing a trail or
6 trails in state-owned parks or any portion thereof in accordance with
7 the policies of this chapter.

8 b. In the commissioner's discretion, the commissioner may establish
9 permanent or temporary agreements with parks' friends groups or other
10 local community non-profit groups, such as parks' friends groups, to
11 administer the program. If more than one group is interested in adminis-
12 tering the program, the commissioner shall develop an open and compet-
13 itive process to select the best group to administer the program. For
14 the purposes of this section, "parks' friends groups" shall be defined
15 as non-profit organizations that have been designated as 501(c)(3)
16 organizations under federal law established primarily to support a
17 specific park area or group of parks.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 2. The stewardship agreement shall provide that the trail area be
2 preserved and maintained in its natural, cultural and historical state
3 or managed to enhance or restore the natural, cultural, historical and
4 heritage values it provides, consistent with the provisions of this
5 chapter. Activities may include: remediation of vandalism and storm
6 damage; disposing of litter and trash; establishing or maintaining
7 access to nature trails; providing interpretive services for school
8 groups and other citizens; lawn maintenance and tree trimming; plant-
9 ings, installation, repair or replacement of benches, kiosks, picnic
10 tables and shelters; and otherwise providing positive benefits to the
11 trail area.

12 3. Stewardship agreement with any person or persons may provide for
13 assistance of personnel, facilities and supplies of the office for the
14 purposes of supporting appropriate activities under such stewardship
15 agreement, in accordance with the provisions of this chapter.

16 4. The office shall establish procedures by which a person or persons
17 may apply for a stewardship agreement, and shall be responsible for
18 working with such person or persons to identify specific sections of a
19 state-owned park trail and specific activities deemed appropriate for
20 such stewardship agreement. The office may consider factors such as
21 safety, environmental, cultural and historical sensitivity, need, cost,
22 and other factors deemed relevant in determining which trail areas or
23 activities may be eligible or appropriate for a stewardship agreement.

24 5. a. The office shall provide recognition of the stewardship activ-
25 ities by displaying appropriate signage, as described in paragraph b of
26 this subdivision, on or near the adopted trail area, and may provide
27 recognition by such other measures as it may determine to be appropri-
28 ate, including but not limited to press releases, certificates, and
29 newsletters.

30 b. Sponsorship may be indicated by having hiking trail marker signs
31 that display the name of the trail sponsor. Trail signs shall be circu-
32 lar and not be more than five inches in diameter, unless deemed neces-
33 sary to be larger for safety reasons or if the sign is an important
34 marker such as the first sign of the trail. The name of the sponsor
35 shall not take up more than twenty-five percent of the sign and shall
36 not impede upon the other information displayed on the sign. Upon the
37 expiration of a temporary sponsorship agreement, the trail sponsor shall
38 be responsible for removing all trail marker signs that display the
39 name.

40 6. The stewardship agreement may be modified in scope or altered in
41 any other manner at the sole discretion of the office, not inconsistent
42 with the provisions of this section. The person or persons shall have
43 the option of renewing the agreement subject to the approval of the
44 office and the continuation by the office of the state park adopt-a-
45 trail stewardship program. The office may immediately remove the signs
46 and it may terminate the agreement upon thirty days notice, if in its
47 sole judgment it finds and determines that the person or persons are
48 violating the terms and conditions of the agreement.

49 7. The commissioner shall determine in the commissioner's discretion,
50 which trails or portions thereof shall be sponsored in accordance with
51 the provisions of this section. Nothing in this section shall require
52 the commissioner to authorize the stewardship of any particular trail or
53 portion thereof.

54 8. Any funds designated to fund the stewardship program established by
55 this section shall be held in the state park adopt-a-trail stewardship

1 program fund established in section ninety-seven-xxxx of the state
2 finance law.

3 9. No agreement entered into pursuant to the state park adopt-a-trail
4 stewardship program shall result in the displacement of any currently
5 employed worker or the loss of position, including the partial displace-
6 ment such as reduction in the hours of non-overtime labor, wages or
7 employment benefits, or result in the impairment of existing collective
8 bargaining agreements.

9 § 2. The state finance law is amended by adding a new section 97-xxxx
10 to read as follows:

11 § 97-xxxx. State park adopt-a-trail stewardship program fund. 1.
12 There is hereby established in the joint custody of the state comp-
13 troller and the commissioner of parks, recreation and historic preserva-
14 tion a special fund to be known as the "state park adopt-a-trail
15 stewardship program fund".

16 2. Such fund shall consist of all moneys credited or transferred ther-
17 eto from any other fund or source pursuant to law. Moneys in the fund
18 shall be kept separate and shall not be commingled with any other moneys
19 in the custody of the comptroller.

20 3. Moneys of the fund may be expended for the purposes provided in
21 section 3.27 of the parks, recreation and historic preservation law
22 according to the requirements of such section. Moneys shall be paid out
23 of the fund on the audit and warrant of the state comptroller on vouch-
24 ers certified or approved by the commissioner of parks, recreation and
25 historic preservation.

26 4. The fund shall be held within the business and licensing services
27 account as established in section ninety-seven-y of this article.

28 § 3. This act shall take effect on the one hundred twentieth day after
29 it shall have become a law. Effective immediately the addition, amend-
30 ment and/or repeal of any rule or regulation necessary for the implemen-
31 tation of this act on its effective date are authorized to be made and
32 completed on or before such date.